

matter is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of arbitration. The parties are ordered to file status statements no less than five court days prior to the review hearing. **No appearance is necessary on today's calendar.**

CRUZ VS. WINCO FOODS, LLC

CASE NUMBER: 24CV-0204817

This matter is on calendar for review regarding Answer to the Cross-Complaint and trial setting. The Court notes that Cross-Defendant Diamond Janitorial Services has not filed an Answer to the Cross-Complaint filed by Winco Foods, LLC on October 13, 2025 and Cross-Defendant Diamond Janitorial Company, LLC has not filed an Answer to the Cross-Complaint filed by TEC Services, LLC on January 26, 2026. A Summons did not issue for either Cross-Complaint. The matter will not be set for trial until the matter is at issue. **An appearance is necessary on today's calendar.**

DISCOVER BANK VS. MARCUZ

CASE NUMBER: 24CVG-01645

This matter is on calendar for review regarding status of judgment/dismissal. The Court notes that a CCP § 664.6 Stipulation and Order were returned by the clerk on July 9, 2026 due not containing original signature or being filed by fax. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of CCP § 664.6 Dismissal. Plaintiff is ordered to resubmit. The hearing will be vacated if a dismissal is on file prior to the next court date. **No appearance is necessary on today's calendar.**

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

This matter is on calendar to reset the hearing on Defendant's Motion for Summary Judgment. Defendant filed a status statement requesting a ruling on the motion as submitted. Plaintiffs did not file a status statement. The Court notes that trial in this matter is scheduled for August 25, 2026. Absent good cause being presented otherwise, the Court intends to set the matter for hearing on **Monday, August 17, 2026 at 8:30 a.m. in Department 63** with the Court finding good cause to hear the motion within thirty days of trial. The parties are ordered to meet and confer prior to the hearing regarding trial readiness and the hearing date on the motion. **An appearance is necessary on today's calendar.**

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

Tentative Ruling on Motion to be Relieved: Douglas B. Jacobs of Jacobs, Anderson, Cecil and Wieder, LLP moves to be relieved as counsel for Plaintiff James Jackson. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d).

There is proof of service on file reflecting timely service on Plaintiff as well as Defendant's counsel. The address used for service on Plaintiff was confirmed within the last 30 days mail with return receipt.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Plaintiff's counsel has provided evidence that there is a breakdown in the attorney-client relationship such that continued representation is untenable.

The motion is **GRANTED**. Counsel provided a proposed Order that will be executed by the Court. Jacobs, Anderson, Cecil and Wieder, LLP will be relieved upon the filing of the Notice of Entry of Order. The matter